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Supreme Court, U.S.
FILED
SEP 30 1998
OFFICE OF THE CLERK

No. 98-376

IN THE

Supreme Court of the United States

OCTOBER TERM, 1998

WARNER JACKSON, *et al.*, *Petitioners*,

v.

JOHN T. BENSON, *et al.*, *Respondents*.

MILWAUKEE TEACHERS' EDUCATION ASSOCIATION, *et al.*, *Petitioners*,

v.

JOHN T. BENSON, *et al.*, *Respondents*.

NATIONAL ASSOCIATION FOR THE ADVANCEMENT OF COLORED PEOPLE, *et al.*, *Petitioners*,

v.

JOHN T. BENSON, *Respondent*.

ON PETITION FOR A WRIT OF CERTIORARI TO THE SUPREME COURT OF WISCONSIN

BRIEF *AMICUS CURIAE* OF THE NATIONAL COMMITTEE FOR PUBLIC EDUCATION AND RELIGIOUS LIBERTY IN SUPPORT OF THE PETITION FOR A WRIT OF CERTIORARI

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TABLE OF CONTENTS

Page

TABLE OF AUTHORITIES ii

INTEREST OF THE *AMICUS CURIAE* 1

SUMMARY OF *AMICUS*'S POSITION 2

ARGUMENT 4

I. THE DECISION OF THE COURT BELOW CONFLICTS WITH WELL-ESTABLISHED PRECEDENT BECAUSE IT INCORRECTLY INTERPRETED RECENT SUPREME COURT DECISIONS AS ALTERING FUNDAMENTAL ESTABLISHMENT CLAUSE PRINCIPLES 4

A. The Wisconsin Court Failed To Grasp That Establishment Clause Neutrality Means Not Merely Evenhandedness As Between Secular And Religious Institutions, But Neutrality With Respect To Advancing Religion 6

B. The Wisconsin Court Ignored The Unbroken Path Between State Appropriations And Church Coffers 9

II. THIS CASE PRESENTS AN IMPORTANT OPPORTUNITY TO REAFFIRM FUNDAMENTAL ESTABLISHMENT CLAUSE PRINCIPLES 13

CONCLUSION 15

TABLE OF AUTHORITIES

Page

Cases

Agostini v. Felton,
117 S. Ct. 1997 (1997) 3, 5, 6, 7
8, 9, 11, 12

Bowen v. Kendrick,
487 U.S. 589 (1987) 13

Committee for Public Education v. Nyquist,
413 U.S. 756 (1973) 2, 4, 5, 6,
7, 10, 12

County of Allegheny v. American Civil Liberties Union, Greater Pittsburgh Chapter, 492 U.S. 573 (1989) 11

Everson v. Board of Education,
330 U.S. 1 (1947) 13, 14

Illinois ex rel. McCollum v. Board of Education, 333 U.S. 203 (1948) 7, 14

Jackson v. Benson,
570 N.W.2d 407 (Wis. Ct. App. 1997) 9

Jackson v. Benson,
578 N.W.2d 602 (Wis. 1998) . . . . . *passim*

Lynch v. Donnelly,
465 U.S. 668 (1984) 11

TABLE OF AUTHORITIES—Continued

Page

Meek v. Pittinger,
421 U.S. 349 (1975) 9, 13

Muller v. Allen,
463 U.S. 388 (1983) 5, 7, 8

Rosenberger v. Rector & Visitors of the University of Virginia,
515 U.S. 819 (1995) 5, 7, 8, 13

Tilton v. Richardson,
403 U.S. 673 (1971) 7, 13

Waltz v. Tax Commission,
397 U.S. 664 (1970) 14

Witters v. Washington Department of Services for the Blind, 474 U.S. 481 (1986) 2, 4, 5, 7, 8, 10, 11

Wolman v. Walter,
433 U.S. 229 (1977) 7, 10, 13

Zobrest v. Catalina Foothills School District,
509 U.S. 1 (1993) 5, 7, 8, 9, 11, 12

Statute

Wis. Stat. § 119.23(4) 2

BRIEF *AMICUS CURIAE* OF THE NATIONAL COMMITTEE FOR PUBLIC EDUCATION AND RELIGIOUS LIBERTY IN SUPPORT OF THE PETITION FOR A WRIT OF CERTIORARI

The National Committee for Public Education and Religious Liberty ("National PEARL") submits this brief *amicus curiae* in support of the petition for a writ of certiorari filed on behalf of the petitioners, who were plaintiffs in the trial court and respondents in the Wisconsin Supreme Court in three consolidated cases challenging the constitutionality of a Wisconsin school voucher program. This brief is filed with the written consent of all parties, and their letters of consent have been filed with the Court.[1/]

INTEREST OF THE *AMICUS CURIAE*

National PEARL is a diverse coalition of grassroots and national civic, educational, religious, labor and civil rights organizations and individual members that seeks to preserve religious freedom and maintain the separation of church and state in public education. National PEARL believes that public funds should be spent in public schools and that public schools should remain safe havens for all children, regardless of their creed.

The Wisconsin Supreme Court in *Jackson v. Benson*, 578 N.W.2d 602 (Wis. 1998) (Pet. App. at 1a), misapplied this Court's Establishment Clause jurisprudence, and as a result, upheld a statute providing for direct state funding of religious education. The Wisconsin court's decision is flatly at odds

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[1/] Counsel for the *amicus curiae* authored this brief in its entirety. No person or entity, other than the *amicus curiae*, its members, or its counsel, made a monetary contribution to the preparation or submission of this brief.

with the basic constitutional principles that National PEARL and its members have fought to uphold. National PEARL urges review and reversal of that decision, to reaffirm the bedrock Establishment Clause prohibition against direct government sponsorship of religious activities.

SUMMARY OF *AMICUS*'S POSITION

The Milwaukee Parental Choice Program as initially established allowed a limited number of Milwaukee Public School students to attend "at no charge, any nonsectarian private school located" in the City of Milwaukee. In 1995, the state legislature removed the requirement that participating private schools be "nonsectarian." Now, under the amended Milwaukee Parental Choice Program ("amended MPCP") at issue in this case, approximately 15,000 Milwaukee students are allowed to attend sectarian private schools at state expense. The state pays these schools the lesser of the per-pupil state aid provided to Milwaukee Public Schools or the schools' "operating and debt service cost per pupil that is related to education programming," Wis. Stat. § 119.23(4), even though tuition at most participating sectarian schools is less than either figure. Once the state funds reach the schools' coffers, they can be used for any purpose at all, including paying their clergy, purchasing religious literature or supporting missionary work.

Twenty-five years ago, this Court rejected a private-school voucher program indistinguishable from the amended MPCP in *Committee for Public Education v. Nyquist*, 413 U.S. 756 (1973), a case litigated by a predecessor of National PEARL. More recently, this Court reaffirmed that "aid to a religious institution unrestricted in its potential uses, if properly attributable to the state, is 'clearly prohibited under the Establishment Clause.'" *Witters v. Washington Department of Services for the Blind*, 474 U.S. 481, 489

(1986) (citation omitted). This Court has never allowed states to engage in the kind of systematic funding of religious activity that will occur if the Wisconsin court's decision is allowed to stand.

Nonetheless, the Wisconsin Supreme Court held that the amended MPCP did not violate the fundamental Establishment Clause principle that public funds may not be used to finance religious indoctrination for two reasons. First, the court determined that the amended MPCP does not implicate the state in impermissible religious activity because it provides state funds to both sectarian and nonsectarian schools and is thus "neutral" toward religion. (Pet. App. at 25a-26a.) Second, the court held that the amended MPCP did not implicate the state in impermissible religious activity because parents, not the state, make the choice to provide state funds to religious schools. (Pet. App. at 27a-28a.) In so ruling, the Wisconsin court misinterpreted this Court's Establishment Clause jurisprudence and departed dramatically from the precedents that govern both of the points on which its decision rested.

1. In holding that the amended MPCP was "neutral" in the sense that program benefits flowed to both sectarian and nonsectarian schools, the Wisconsin Supreme Court ignored the body of precedent establishing that the mere fact that a statute benefits secular as well as sectarian schools does not establish that it is "neutral" toward religion. The Wisconsin court thus effectively substituted a simple requirement that the law be evenhanded for the more refined analysis this Court has required in order to determine whether a law has "the effect of advancing religion." *Agostini v. Felton*, 117 S. Ct. 1997, 2014 (1997).

2. In holding that the amended MPCP entails an opportunity for parental "choice" that breaks any link between

state dollars and church coffers, the Wisconsin Supreme Court credited a type of sham transaction that this Court has repeatedly rejected, and equally important, misconstrued this Court's approval of aid programs that allow for "genuinely independent and private choices of aid recipients." *Witters*, 474 U.S. at 487.

National PEARL accordingly urges this Court to grant certiorari in order to address the Wisconsin Supreme Court's departure from fundamental Establishment Clause principles, and to clarify these principles. The Wisconsin court candidly acknowledged the difficulties in "distill[ing]" an "underlying theory" to guide its analysis of the amended MPCP, and these same difficulties are likely to mislead other courts that will be required to judge state experiments with "school choice" programs. (Pet. App. at 16a.) This Court should make clear that its recent Establishment Clause decisions have not eliminated the basic constitutional principle that programs that involve the systematic, direct funding of religious activities, like the one this Court addressed in *Nyquist* and like the amended MPCP, violate the Establishment Clause.

ARGUMENT

I. THE DECISION OF THE COURT BELOW CONFLICTS WITH WELL-ESTABLISHED PRECEDENT BECAUSE IT INCORRECTLY INTERPRETED RECENT SUPREME COURT DECISIONS AS ALTERING FUNDAMENTAL ESTABLISHMENT CLAUSE PRINCIPLES

In *Committee for Public Education v. Nyquist*, 413 U.S. 756 (1973), this Court deemed unconstitutional a school voucher program that provided tuition reimbursements for children attending both sectarian and non-sectarian private schools. The *Nyquist* Court reached this result even though

the program was evenhanded in the respect that tuition for both religious and non-religious schools was reimbursed, and even though the religious schools received the state aid only because parents chose to send their children to those schools. The Court held that the program impermissibly advanced religion because it provided no guarantee "that the state aid derived from public funds [would] be used exclusively for secular, neutral, and nonideological purposes," and because channeling the aid through parents was of no constitutional significance. 413 U.S. at 780, 783.

In recent years, this Court's Establishment Clause decisions and dicta have somewhat obscured the constitutional guideposts that led to the *Nyquist* Court's decision. The Wisconsin court, lost in the underbrush that has grown out of a series of cases stretching from *Muller v. Allen*, 463 U.S. 388 (1983), to *Agostini v. Felton*, 117 S. Ct. 1997 (1997), mistakenly believed that the Court had blazed a new, different trail.[2/]

The Wisconsin court thus held that the amended MPCP is constitutional because aid is "'made available to both religious and secular beneficiaries on a non-discriminatory basis'" (Pet. App. at 25a, quoting *Agostini*, 117 S. Ct. at 2014) and because aid flows to sectarian private schools only "as a result of the necessary and intervening choices of individual parents" (Pet. App. at 28a), despite the fact that both characteristics were features of the *Nyquist* scheme.

[2/] The other decisions in the *Muller-Agostini* line of cases upon which the Wisconsin court relied include *Witters v. Washington Department of Services for the Blind*, 474 U.S. 481 (1986); *Zobrest v. Catalina Foothills School District*, 509 U.S. 1 (1993); and *Rosenberger v. Rector & Visitors of the University of Virginia*, 515 U.S. 819 (1995).

In searching for a path to a decision, the Wisconsin court wrongly focused on selected attributes of other funding programs that the Court has analyzed over the years, and it mistook what were necessary conditions for constitutionality in those case as sufficient for upholding the very different program at issue here. But this Court has never renounced, and indeed has reaffirmed, the fundamental animating principle of its *Nyquist* decision — that the Establishment Clause prohibits states from providing financial support to programs that advance religion.

A. The Wisconsin Court Failed To Grasp That Establishment Clause Neutrality Means Not Merely Evenhandedness As Between Secular And Religious Institutions, But Neutrality With Respect To Advancing Religion.

The Wisconsin Supreme Court's decision reflects a fundamental misunderstanding of the difference between evenhandedness and neutrality in Establishment Clause analysis. As this Court recently explained, "'[e]venhandedness is a necessary but not sufficient condition for an aid program to survive constitutional scrutiny.'" *Agostini*, 117 S. Ct. at 2014 (quoting *id.* at 2025 (Souter, J., dissenting)). In assessing whether a statute conforms to Establishment Clause neutrality principles, the dispositive question is not whether the law treats secular and religious organizations evenhandedly, and is in this sense neutral, but rather, whether the law is neutral in the sense that it does not have "the effect of advancing religion." *Id.* *See also Nyquist*, 413 U.S. at 788 ("'neutrality'" means "neither 'advancing' nor 'inhibiting' religion").

The Wisconsin court clearly misunderstood this basic point when it found that the amended MPCP "satisfies the principle of neutrality" simply because program beneficiaries

and participating schools are selected without regard to religious orientation. (Pet. App. at 26a.)

Evenhandedness, or "formal" neutrality as between secular and sectarian institutions, is a factor in Establishment Clause analysis, but it is not the dispositive factor. *See Rosenberger v. Rector & Visitors of the University of Virginia*, 515 U.S. 819, 839-41 (1995); *Illinois ex rel. McCollum v. Board of Education*, 333 U.S. 203, 227 (1948) (opinion of Frankfurter, J.) (the Establishment Clause creates "a requirement to abstain from fusing functions of Government and of religious sects, not merely to treat them all equally"). This Court has repeatedly held that statutes that advance or endorse religion violate Establishment Clause neutrality principles even though they provide benefits to both secular and sectarian groups. *See, e.g.*, *Nyquist*, 413 U.S. at 780 (striking down a law providing reimbursement to students attending both secular and sectarian private schools); *Tilton v. Richardson*, 403 U.S. 673, 676 (1971) (striking down a law allowing construction grants to "all colleges and universities regardless of any affiliation or sponsorship by a religious body"); *Wolman v. Walter*, 433 U.S. 229, 248-51 (1977) (striking down a law allowing Ohio to lend instructional material and equipment to students attending both secular and sectarian private schools).

The Wisconsin court failed to address these decisions because it misunderstood this Court's *Mueller-Agostini* line of cases as equating simple evenhandedness with Establishment Clause neutrality. What the Wisconsin court failed to recognize is that, although evenhandedness was a necessary condition for upholding the programs at issue in those cases, *see Agostini*, 117 S. Ct. at 2014; *Rosenberger*, 515 U.S. at 839; *Zobrest*, 509 U.S. at 10-11; *Witters*, 474 U.S. at 487-88; *Muller*, 463 U.S. at 397-99, in each case this Court also considered whether the programs actually operated in a neutral

manner and whether any unrestricted funds that were properly attributable to the state flowed to religious institutions, *see Agostini*, 117 S. Ct. at 2012-14; *Rosenberger*, 515 U.S. at 840-43; *Zobrest*, 509 U.S. at 10-13; *Witters*, 474 U.S. at 487; *Muller*, 463 U.S. at 399-400.

Once the Wisconsin court's misguided reliance on evenhandedness is corrected, there can be no question that the amended MPCP fails the Establishment Clause neutrality test for the simple reason that it undeniably advances religion. Under the amended MPCP, religious schools can use state funds to finance the religious facets of their students' education, not merely identifiable secular or supplemental components of the curriculum. This feature distinguishes the amended MPCP from the aid programs at issue in many of the *Muller-Agostini* cases upon which the Wisconsin court relied, where no unrestricted government funds ever reached the coffers of religious schools. *See Agostini*, 117 S. Ct. at 2012-13 (distinguishing aid that would "impermissibly finance religious indoctrination" because it "supplanted" instruction provided by sectarian schools from the aid at issue, which constituted a permissible "supplement[] to the regular curricula"); *Zobrest*, 509 U.S. at 12 (aid was a "neutral service" and would not "relieve[] sectarian schools of costs they otherwise would have borne in educating their students"); *Rosenberger*, 515 U.S. at 842 (the Court was "not confront[ing] a case where . . . the government is making direct money payments to an institution or group that is engaged in religious activity"); *Muller*, 463 U.S. at 390-91 (parents allowed to take education-related tax deductions). This Court has consistently recognized that substantial, unrestricted aid to religious schools "'necessarily results in aid to the sectarian school enterprise as a whole,' and therefore brings about 'the direct and substantial advancement of

religious activity.'" *Zobrest*, 509 U.S. at 12 (quoting *Meek v. Pittenger*, 421 U.S. 349, 366 (1975)).[3/]

This Court should thus grant certiorari to reaffirm that a state aid program does not satisfy the Establishment Clause test of neutrality toward religion merely by allowing state funds to flow to secular as well as sectarian schools. The Court should make clear that programs such as the amended MPCP unconstitutionally advance religion by making state funds available to religious schools for an unrestricted range of sectarian activities.

B. The Wisconsin Court Ignored The Unbroken Path Between State Appropriations And Church Coffers.

The Wisconsin Court also found that the amended MPCP does not violate the fundamental Establishment Clause prohibition against state funding of religious indoctrination, *see Agostini*, 117 S. Ct. at 2012, because the state provides the aid "by individual checks made payable to the parent of each pupil attending a private school under the program" and therefore any aid that flows to sectarian schools does so only "as a result of the necessary and intervening choices of individual parents." (Pet. App. at 28a.) But the Wisconsin

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[3/] Moreover, in considering whether the amended MPCP had the effect of advancing religion, the Wisconsin court all but ignored the critical difference between the original program and the amended MPCP — the original program was explicitly amended in 1995 to allow religious schools to participate. As the Wisconsin Court of Appeals noted, the decision to expand the program to include sectarian schools clearly had the effect of promoting religion: "Whatever benefit to private schools is conferred by the amendments in the Act is 'in reality one confined to those religious groups which operate' the eighty-nine sectarian schools that became eligible to participate as a result of the passage of the amended program." *Jackson v. Benson*, 570 N.W.2d 407, 418 (Wis. Ct. App. 1997) (citation omitted). (Pet. App. at 77a-78a.)

Court misunderstood this Court's precedents when it suggested that either the amended MPCP's administrative sleight-of-hand in making the parents payees, or the limited "choices" available to parents, alters the MPCP's fundamentally unconstitutional character.

This Court has consistently held that the substance of state aid, and not merely its form, determines whether aid to religious schools passes constitutional muster. The relevant question is not whether state aid is nominally directed to parents or to religious schools, but whether a "meaningful distinction can be made between aid to the student and aid to the school" or whether the purported distinction is instead "a transparent fiction." *Witters*, 474 U.S. at 487 n.4 (internal quotation omitted). Under the amended MPCP, the distinction is in fact a transparent fiction — the checks are sent to the religious schools, and they "can be cashed only for the cost of the student's tuition." (Pet. App. at 27a.) These checks are thus very different from state paychecks that a recipient government employee may freely donate to a religious institution. *Compare Witters*, 474 U.S. at 486-87.

In fact, in *Nyquist*, the Court found it unquestionable that tuition reimbursements could not be given directly to sectarian schools, and considered only "whether the fact that the grants are delivered to parents rather than schools is of such significance as to compel a contrary result." 413 U.S. at 781. The Court concluded resoundingly that it did not. *Id.* at 781-86. *See also Wolman*, 433 U.S. at 250 (striking down a program of lending educational materials directly to students rather than religious schools because "[d]espite the technical change in legal bailee, the program in substance is the same as before").

Perhaps recognizing that this Court's decisions foreclose an argument that using parents to launder public funds before

they are distributed to sectarian schools removes the unconstitutional taint, the Wisconsin court emphasized that money flows to religious schools only as the result of parental choice. (Pet. App. at 28.) The court's "choice" argument, however, is also inconsistent with this Court's precedents.

First, as a practical matter, the amended MPCP does not allow for the type of "'genuinely independent and private choices'" that this Court has discussed in its Establishment Clause cases. *Zobrest*, 501 U.S. at 9 (quoting *Witters*, 474 U.S. at 487). Unlike aid programs this Court has approved in previous cases, choice is restricted because the amended MPCP's benefits are not "available to all children who meet the [program's] eligibility requirements, no matter what their religious beliefs or where they go to school." *Agostini*, 117 S. Ct. at 2014. Parents who are willing to send their children to religious schools possess far greater options and thus have a greater opportunity to enjoy the program's benefits than those parents who are not.[4/] The amended MPCP is thus very different from the aid programs that this Court upheld in the *Muller-Agostini* line of cases in which benefits were available to all students regardless of where they attended school, and this Court should reaffirm that the Constitution does not tolerate programs that "give aid recipients any

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[4/] The amended MPCP thus implicates the concerns for endorsement of religion that the Court has repeatedly expressed. Parents who do not want to send their children to religious schools are not able to share in the program's full benefits and are thus "outsiders" rather than full members of the community. See, e.g., *County of Allegheny v. American Civil Liberties Union, Greater Pittsburgh Chapter*, 492 U.S. 573, 593-94 (1989) ("The Establishment Clause, at the very least, prohibits government . . . from 'making adherence to a religion relevant in any way to a person's standing in the political community.'") (citation omitted); *Lynch v. Donnelly*, 465 U.S. 668, 688 (1984) ("[e]ndorsement sends a message to nonadherents that they are outsiders, not full members of the political community").

incentive to modify their religious beliefs or practices in order to obtain" government aid. *Agostini*, 117 S. Ct. at 2014.

Second, the "choice" that allows public money to flow to religious schools is not one that "'[could] not be attributed to state decisionmaking.'" Id. at 2012 (quoting *Zobrest*, 509 U.S. at 10). This is not a general government benefit under which "aid is provided to students at whatever school they choose to attend." *Agostini*, 117 S. Ct. at 2013. *See also Zobrest*, 509 U.S. at 19. Instead, the state has established a large-scale program that encourages students to attend private sectarian schools as an alternative to Milwaukee's public schools and systematically channels public tax dollars into those religious schools. The Wisconsin court's argument that public funds reach religious schools only as a matter of a "choice" that cannot be attributed to the government proves far too much. It would effectively eliminate any restrictions on government funding of religious activity as long as the funds were channelled through individuals. In effect, such logic would allow the government to create a per capita subsidy for various religious groups whereby the government could give each citizen money to donate to the religious organization of his or her choice. But this Court has never considered the sort of limited "choice" available to Milwaukee parents to be the cure-all that the Wisconsin court suggests it is.

For example, the *Nyquist* Court treated as insignificant the fact that parents would receive tuition reimbursements whether they sent their children to religious or non-religious private schools because the program lacked "an effective means of guaranteeing that state aid derived from public funds will be used exclusively for secular, neutral, and nonideological purposes." 413 U.S. at 780. Similarly, in *Wolman*, the Court held that a program under which the state loaned instructional material and equipment for use in both secular

and sectarian schools was not saved by making the loans to the students rather than directly to the schools. 433 U.S. at 248-51. *See also Rosenberger*, 515 U.S. at 871 (Souter, J., dissenting) (noting Madison's opposition to a tax collecting funds to be distributed to religious institutions or "seminaries of learning" at the taxpayer's choice). At heart, the argument that parental choice breaks the church-state link is no more than a reprise of the argument that "evenhandedness" does so: neither negates the reality that, under the amended MPCP, the government is advancing religion.

II. THIS CASE PRESENTS AN IMPORTANT OPPORTUNITY TO REAFFIRM FUNDAMENTAL ESTABLISHMENT CLAUSE PRINCIPLES.

The Court has long recognized that "[t]he 'establishment of religion' clause of the First Amendment means at least" that "[n]o tax in any amount, large or small, can be levied in support of any religious activities or institutions." *Everson v. Board of Education*, 330 U.S. 1, 15-16 (1947). The Court has relied upon this bedrock principle regularly to strike down "programs that entail an unacceptable risk that government funding would be used to 'advance the religious mission'" of an institution receiving aid. *Bowen v. Kendrick*, 487 U.S. 589, 612 (1987).[5/]

The Court has never renounced this fundamental proposition of constitutional law. *See, e.g.*, *Rosenberger*, 515 U.S. at 841 ("Our decision . . . cannot be read as addressing an expenditure from a general tax fund."); *id.* at 852 (O'Connor, J., concurring) (the Court is not "signal[ing] the demise of the funding prohibition in Establishment Clause

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[5/] *See, e.g.*, *Meek v. Pittinger*, 421 U.S. 349, 370 (1975); *Tilton*, 403 U.S. at 683.

jurisprudence"). Unfortunately, however, this basic principle has been obscured by the heated battle of dicta that characterizes so much of Establishment Clause litigation.

The amended MPCP undeniably conflicts with this elemental First Amendment principle. Under the amended MPCP, and other programs of its kind, regardless of the extent to which program benefits are distributed evenhandedly, and regardless of the degree to which "choice" is available to parents, the basic fact remains that citizens' tax dollars are being spent to support religious schools. The state is transferring part of its revenues to religious schools, and it "does not prohibit the participating sectarian private schools from using funds for any purpose the school deems appropriate," including solely religious purposes. (Pet. App. at 66a.) The amended MPCP presents much more than a mere "risk" that government funding will be used to advance these schools' religious missions: it directly involves the impermissible "sponsorship . . . of the sovereign in religious activity." *Waltz v. Tax Commission*, 397 U.S. 664, 668 (1970). It is precisely this type of systematic government subsidization and endorsement of religion that lies at the core of the Establishment Clause prohibition. *E.g.*, *McCollum*, 333 U.S. at 210; *Everson*, 330 U.S. at 13-15. The Wisconsin court lost sight of this guiding principle and went astray, and this Court should lead it back to the correct path.

CONCLUSION

The petition for a writ of certiorari should be granted.

Respectfully submitted,

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September 30, 1998